

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BRIAN WILSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. BAPTISTE SHIELD # 953659 and
Officer(s) JANE and JOHN DOE, Names Being Fictitious
and Meant to Designate Additional Offending Officers,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
Plaintiff's residence.

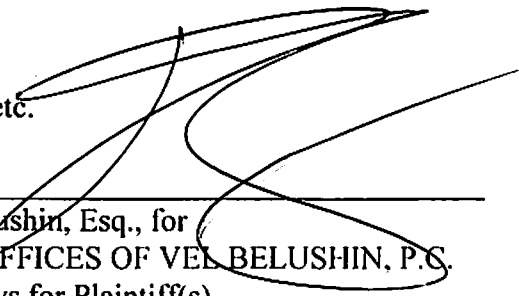
Plaintiff resides at:
12 East 108th Street Apt 3B
New York, NY 10029
County of New York.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 12, 2015

Yours, etc.



Vel Belushin, Esq., for
LAW OFFICES OF VEL BELUSHIN, P.C.
Attorneys for Plaintiff(s)
BRIAN WILSON
1712 Kings Highway Suite 2A
Brooklyn, New York 11229
718-787-4470
Our File No. M 14-0027

TO:

THE CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
LAW DEPARTMENT
100 Church Street
New York, NY 10007

P.O. BAPTISTE SHIELD # 953659
Address is Presently Unknown

JANE/JOHN DOE
Address is Presently Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BRIAN WILSON,

Plaintiff,

Index No.:

Date Purchased:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. BAPTISTE SHIELD
953659 and Officer(s) JANE and JOHN DOE,
Names Being Fictitious and Meant to Designate
Additional Offending Officers,

Defendants.

-----X

Plaintiff, by his attorneys, **LAW OFFICES OF VEL BELUSHIN, P.C.**, complaining of the
Defendants, respectfully allege, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein mentioned, Plaintiff, **BRIAN WILSON**, was, and still is, a resident of the County of New York, City and State of New York.
2. The cause of action alleged herein arose in the County of New York, City and State of New York.
3. At all times relevant and material herein, Defendant **THE CITY OF NEW YORK** was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.
4. At all times herein mentioned, defendant, **NEW YORK CITY POLICE**

DEPARTMENT, was and still is an entity operated by defendant. **THE CITY OF NEW YORK**, its agents, servants and employees.

5. That at all times relevant and material herein, the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were members of the **NEW YORK CITY POLICE DEPARTMENT** and employees of **THE CITY OF NEW YORK**.

6. That at all times relevant and material herein, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were employed by **THE CITY OF NEW YORK** and the New York City Police Department.

7. That at all times relevant and material herein, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were working and acting within the scope of their employment as Police Officers, and under the color of law.

8. That on May 23, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of **THE CITY OF NEW YORK** and on the **NEW YORK CITY POLICE DEPARTMENT** that thereafter said Comptroller for **THE CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT** refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

9. That Defendant **THE CITY OF NEW YORK** waived its right to a hearing pursuant to General Municipal Law § 50-h, as a condition precedent to Plaintiff's right to bring this action, by failing to serve the subsequent demand.

10. That this action is commenced within one year and ninety days after the happening of the events upon which it is based.

11. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** maintained **THE NEW YORK CITY POLICE DEPARTMENT**, as units and agencies of the city government, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the City and State of New York.

12. That Defendant **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/ or screen police officers and of **THE NEW YORK CITY POLICE DEPARTMENT**.

13. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officer and of **THE NEW YORK CITY POLICE DEPARTMENT**.

14. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officer and of **THE NEW YORK CITY POLICE DEPARTMENT**.

15. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers and of **THE NEW YORK CITY POLICE DEPARTMENT**.

16. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees,

agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

17. That Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers of THE NEW YORK CITY POLICE DEPARTMENT.

18. The Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

19. That Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

20. The Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in an illegal manner.

21. That Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in an unprofessional manner.

22. That Defendant THE CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers and of THE NEW YORK CITY POLICE DEPARTMENT to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

23. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers and of **THE NEW YORK CITY POLICE DEPARTMENT**.

24. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers of **THE NEW YORK CITY POLICE DEPARTMENT** clearly unfit to be police officers and of **THE NEW YORK CITY POLICE DEPARTMENT**.

25. That all times hereinafter mentioned. Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were an agent, servant and/or employee of **THE NEW YORK CITY POLICE DEPARTMENT**, an agency of Defendant **THE CITY OF NEW YORK**.

26. That at all times hereinafter mentioned, Defendants, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were acting within the scope of their employment, by Defendant **THE NEW YORK CITY POLICE DEPARTMENT** an agency of Defendant **THE CITY OF NEW YORK** and were acting under the color of State Law.

27. That at all times hereinafter mentioned, Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, were acting within the scope of their employment with the permission and consent of Defendant **THE NEW YORK CITY POLICE DEPARTMENT** through its agency with Defendant **THE CITY OF NEW YORK**.

28. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments failed to properly and adequately conduct investigations, obtain true facts and statements from witnesses and law enforcement officers.

29. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments, was careless, reckless and negligent in failing to discover the true facts of the assault and battery of the Plaintiff.

30. That Defendant **THE CITY OF NEW YORK** by its agents, servants, employees, agencies and/or departments, was further careless, reckless and negligent in the supervision of the activities of its agency, the Defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

31. That Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** by its agents, servants, employees, agencies and/or departments failed to take all necessary steps to prevent the false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial and, personal injuries; Violation of Civil Rights pursuant to 42 U.S.C. Section 1981, 1982, 1983, 1985 and 1986 and more particularly protected under the 4th, 5th, 8th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution of the Plaintiff, **BRIAN WILSON**.

32. That on or about February 25, 2014, at approximately 9 p.m. Plaintiff, **BRIAN WILSON**, was a lawful operator of the Lexus motor vehicle which was loaned to the Plaintiff by the Lexus repair body shop for the period while Plaintiff's own motor vehicle was undergoing auto body repair on the premises of the respective Lexus auto body repair shop.

33. That on or about February 25, 2014, at approximately 9 p.m., the Plaintiff, **BRIAN**

WILSON, was lawfully operating the aforesaid loaned Lexus motor vehicle on East 102nd Street, between 2nd and 1st Avenue, New York, New York, in the County of New York.

34. That on or about February 25, 2014, at approximately 9 p.m., at the aforementioned location, the aforesaid vehicle lawfully operated by the Plaintiff was stopped by the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, and the Plaintiff, **BRIAN WILSON**, was ordered to exit the vehicle and present identification to the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers. That after complying with aforesaid Defendants' order and exiting the vehicle Plaintiff, **BRIAN WILSON**, and presenting the valid New York State driver's license to the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, the Plaintiff was immediately searched by said Defendants. Following the search, Plaintiff, **BRIAN WILSON**, was immediately cuffed and told that he was under arrest for suspended license. Upon information and belief Plaintiff, **BRIAN WILSON**, spent approximately twenty- four hours in custody at the 23rd Precinct and Manhattan Detention Complex. Upon information and belief New York County District Attorney's Office declined to prosecute Plaintiff, **BRIAN WILSON**, and Plaintiff, **BRIAN WILSON**, was released from custody without being arraigned. All of the above was a result of the and carelessness, recklessness, willful disregard and negligence of the Defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate

Additional Offending Officers, their agents, servants and/or employees in the operation, management, inspection, supervision and/or control/training of the above mentioned police officer and police officers.

35. At the aforesaid date time and place, the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, performed a false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial to the Plaintiff, **BRIAN WILSON**, causing said plaintiff to sustain serious mental distress. That as a result of the Defendants **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE's**, Names Being Fictitious and Meant to Designate Additional Offending Officers, conduct the Plaintiff, **BRIAN WILSON**, sustained great fear, emotional harm, disgrace, anxiety, stress, embarrassment and loss of self-esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by the Defendants. Plaintiff, **BRIAN WILSON**, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature.

36. That the Defendants, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE's**, Names Being Fictitious and Meant to Designate Additional Offending Officers, conduct was a substantial factor in causing the incident and the Plaintiff, **BRIAN WILSON's**, damages. The aforesaid occurrence and resulting damages to the Plaintiff, **BRIAN WILSON**, were due to misconduct of the defendants herein. Said occurrence and resulting injuries of Plaintiff, **BRIAN WILSON**, were due without fault or wrongdoing on the part of the Plaintiff contributing thereto. By reason of the foregoing, the Plaintiff, **BRIAN WILSON**, has been damaged in an amount

which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SECOND CAUSE OF ACTION

37. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

38. That on or about February 25, 2014, the Plaintiff, **BRIAN WILSON**, was without just cause or provocation maliciously, recklessly and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to Plaintiff, **BRIAN WILSON**, due to conduct of the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity.

39. That said conduct constituted negligence of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

40. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A THIRD CAUSE OF ACTION

41. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

42. That on or about February 25, 2014 the Plaintiff, **BRIAN WILSON**, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the negligence of the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

43. That said conduct constituted negligence of the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

44. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FOURTH CAUSE OF ACTION

45. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

46. That on or about February 25, 2014, the Plaintiff, **BRIAN WILSON**, was falsely

arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the reckless conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEWYORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

47. That said conduct constituted reckless conduct of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**. Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

48. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FIFTH CAUSE OF ACTION

49. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

50. That on or about February 14, 2014, the Plaintiff, **BRIAN WILSON**, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the willful, wanton, reckless and/or malicious conduct of the defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and

Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers.

51. That said conduct constituted willful, wanton, reckless and/or malicious conduct of the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

52. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SIXTH CAUSE OF ACTION

53. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

54. That on or about February 25, 2014, the Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, in their official capacity and individually, intentionally, recklessly carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society, thereby inflicting mental and emotional distress upon Plaintiff, **BRIAN WILSON**.

55. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered

the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

56. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

57. That on or about February 25, 2014, the Plaintiff, **BRIAN WILSON**, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the negligent, careless and improper training, supervision and control of police officers, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and Defendant, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

58. That said conduct constituted negligent, careless and improper training, supervision and control of the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendant, **THE NEW YORK CITY POLICE DEPARTMENT** and Defendants, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually.

59. That the Defendant **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE**

DEPARTMENT and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, due to the negligent, careless and improper training, supervision and control of police officers induced criminality.

60. That the Defendant, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendant, **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, conduct was egregious as a matter of law.

61. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR AN EIGHTH CAUSE OF ACTION

62. Plaintiff, **BRIAN WILSON**, repeats, reiterates and re-alleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

As a result of the aforescribed actions, including the arrest and imprisonment of Plaintiff, **BRIAN WILSON**, without probable cause, the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, deprived the Plaintiff of the rights, privileges and immunities

protected under the 14th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

63. As a result of the aforescribed actions the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, deprived the Plaintiff, **BRIAN WILSON**, of the right to be free from unreasonable search and seizures protected under the 4th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

64. As a result of the aforescribed actions the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, deprived the Plaintiff of his right to liberty without due process of law protected under the 5th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

65. As a result of the aforescribed actions the Defendants **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional

Offending Officers, in their official capacity and individually, deprived the Plaintiff of his right to be free from cruel and unusual punishment protected under the 5th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

66. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

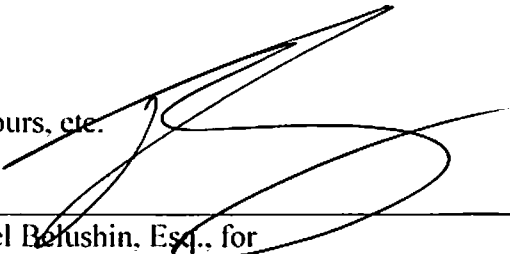
67. The aforescribed acts of the Defendants, **THE CITY OF NEW YORK**, by its agents, servants, employees, agencies and/or departments, including Defendants, **THE NEW YORK CITY POLICE DEPARTMENT** and **P.O. BAPTISTE SHIELD # 953659**, and Officer(s) **JANE** and **JOHN DOE**, Names Being Fictitious and Meant to Designate Additional Offending Officers, in their official capacity and individually, was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

68. That as a result of the aforesaid occurrence, Plaintiff, **BRIAN WILSON**, suffered the injuries and damages set forth, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
February 12, 2015

Yours, etc.



Vel Belushin, Esq., for
LAW OFFICES OF VEL BELUSHIN, P.C.
Attorneys for Plaintiff
BRIAN WILSON
1712 Kings Highway Suite 2A
Brooklyn, New York 11229
718-787-4470
Our File No. M 14-0027

TO:

THE CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
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100 Church Street
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P.O. BAPTISTE SHIELD # 953659
Address is Presently Unknown

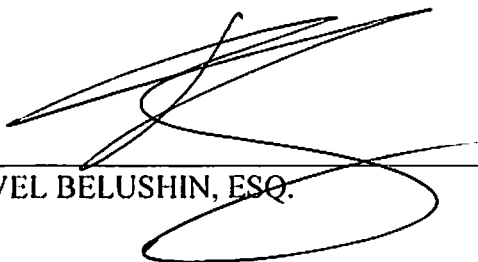
JANE/JOHN DOE
Address is Presently Unknown

ATTORNEY'S VERIFICATION

VEL BELUSHIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at LAW OFFICES OF VEL BELUSHIN, P.C., attorneys of record for Plaintiff, **BRIAN WILSON**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: Brooklyn, New York
February 12, 2015



VEL BELUSHIN, ESQ.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
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BRIAN WILSON,

Plaintiff,

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Officer(s) JANE and JOHN DOE, Names Being Fictitious
and Meant to Designate Additional Offending Officers,

Defendants.
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SUMMONS & VERIFIED COMPLAINT

LAW OFFICES OF VEL BELUSHIN, P.C.

Attorneys for Plaintiff

BRIAN WILSON

1712 Kings Highway, Suite 2A

Brooklyn, New York 11229

(718) 787-4470

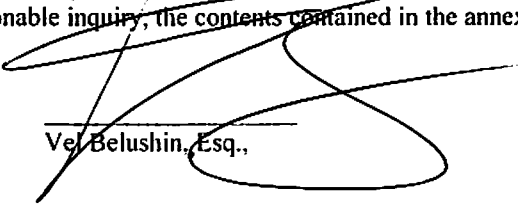
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JANE/JOHN DOE
Address is Presently Unknown

Pursuant to 22NYCR 130-1.1 the undersigned, an attorney admitted to practice in the courts of New York State, certifies that upon information and belief and reasonable inquiry, the contents contained in the annexed document are not frivolous.



Vel Belushin, Esq.,

Dated: February 12, 2015.